

25NNCV08268 25NNCV08268

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-31

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Case Number: 25NNCV08268 Hearing Date: July 31, 2026 Dept: E

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The Court's tentative is to

DENY the motion to transfer this motion to a limited jurisdiction courtroom.

The Court has reviewed the

Complaint. Plaintiff, on the form complaint, states that he is seeking general damages and "[a]ny and all compensatory damages." (Compl. at 3.)

Defense argues that discovery

responses make clear that the Plaintiff is not seeking anything beyond (1) medical expenses and (2) lost wages. However, Plaintiff's response to Form Interrogatory 9.1 makes clear that Plaintiff seeks "[n]on-economic and general damages, including but not limited to pain and suffering, loss of enjoyment of life, and inconvenience" "in an amount to be determined at trial." (Pl. Responses to Form Interrog. at 15.)

How a jury determines the

value of a pain-and-suffering claim is one of the ineffable mysteries of tort law in American law, given that there is generally no formula or table or even guideline as to how to reach a monetary number to align with such a claim:

Noneconomic

damages compensate an injured plaintiff for nonpecuniary injuries, including pain and suffering. Pain and suffering is a unitary concept that encompasses

physical pain and various forms of mental anguish and emotional distress. . . .
Such injuries are subjective, and the determination of the amount of damages by
the trier of fact is equally subjective. . . . There is no fixed standard to
determine the amount of noneconomic damages. Instead, the determination is
committed to the discretion of the trier of fact.

(Corenbaum v. Lampkin (2013)

215 Cal.App.4th 1308, 1332 [cleaned up].) Many lawyers and judges may
profess to know how a jury will value a particular claim of pain and suffering.

This is risible: there is no class on mind reading or fortune telling in law
school, and those topics aren't on the bar exam.

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